

E X C E R P T

A management expert writes of an experiment. Take a frog, he says. Throw it into a pot of boiling water. It will be shocked. It will jump free out of the water. It will get scalded, no doubt, but it will survive. Now take a frog, and put it in a pot with water at room-temperature. Bring the water to a boil, gradually. The frog will get accustomed to higher and higher temperature. It will sink into a stupor, and will eventually get boiled to death.

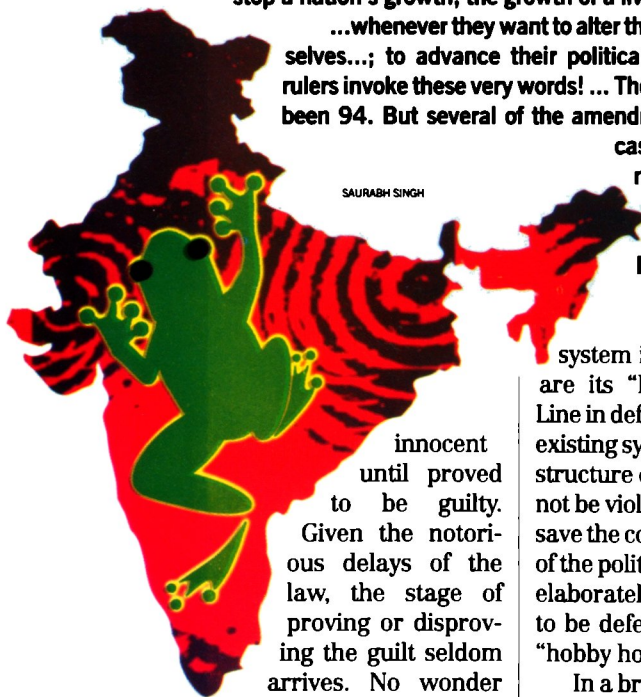
We are that frog. We are getting accustomed to worse and worse conduct in public life, to the winding down of our institutions. Who could have thought even ten years ago that we would have as ministers in the Central government persons against whom cases involving the gravest corruption charges are proceeding in the courts or, indeed, even cases of murder? Haven't we got used to them?...

....when it suits them, our politicians romanticize the present parliamentary system. 'He has a secret agenda,' they shout at anyone who urges that we look for an alternative constitutional system.... This, even though many of them do not so much as blink as they overturn provisions of the Constitution to crush judgements of the Supreme Court which do not suit their political convenience...

...the present system is just a means, an instrument. It has to be judged by the results it produces.

...Almost two years later, as the Constituent Assembly was deliberating over the Draft Constitution, Panditji... told the members: ...Remember this that while we want this Constitution to be as solid and as permanent a structure as we can make it, ... there should be a certain flexibility. If you make anything rigid and permanent, you stop a nation's growth, the growth of a living, vital, organic people.

...whenever they want to alter the provisions—to shield themselves...; to advance their political calculations...—these very rulers invoke these very words! ... The number of amendments has been 94. But several of the amendments have altered, in some cases turned upside down, a number of Articles of the Constitution. A rough count indicates that Articles have been changed 332 times.



innocent until proved to be guilty. Given the notorious delays of the law, the stage of proving or disproving the guilt seldom arrives. No wonder the conclusion Shourie comes to is that today the legislatures have become the "root of the problems that we face in governance" and therefore the time has come to "tilt" the balance away from legislatures towards the executive, to seek and secure "accountability" through institutions other than legislatures, and "strengthen the powers and role of the judiciary". This is easier said than done. Even the author recognises that the change of the

system is in the hands of those who are its "beneficiaries". His Maginot Line in defence of whatever is left of the existing system is the doctrine of "basic structure of the Constitution" that cannot be violated. He calls it the "dyke" to save the country from the depredations of the political class. But, anxiously and elaborately, he points out that it needs to be defended from judges too, with "hobby horses" of their own.

In a brief review it is not possible to summarise the graphic account of the egregious flaws with which the Indian system is overloaded, but let me mention just a few. "Any one leader in a government", says Shourie, "any party in the political spectrum, any faction within a party, can propose or announce a policy and no one can resist going along. Look at the sequence that ensued when, frightened by Devi Lal's announcement that he would hold a rally, V.P. Singh lunged for Mandal;

look at the sequence that ensued when, on hearing that he was being shunted out as a Governor, Arjun Singh announced reservations for OBCs in private, unaided educational institutions." Recalling what Arif Mohammed Khan had told him, Shourie adds: "One minister (told) V.P. Singh, 'Sir, *ise lagoo kar deejaye, bees saal ke liye koi hamen sarkar se hila nahin sakega* (Sir, enforce this and for 20 years nobody would be able to dislodge us from the government)."

"It was out of the same expectations," Shourie reveals candidly, that the "NDA government put through two circulars and constitutional amendments to overturn aspects of Supreme Court judgement on reservations.... Later, a prominent participant remarked, 'We did not get one extra vote from SCs/STs. On the other hand, we got at least 10 per cent votes of government servants in New Delhi.'" Also noteworthy is Shourie's observation that India is left with "two weak and progressively weakening, national parties (the Congress and the BJP). The only way that the two can keep ground from slipping further is to cooperate. But that option is foreclosed by other imperatives that have made "adversarial politics inevitable".

Shourie's own proposal to change the system is broadly what the late B.K. Nehru had advocated—a pattern under which a president is directly elected by more than 50 per cent of the people, and on being so elected, would appoint his ministers from outside Parliament. Moreover, no president would have more than two terms of five years each. He has added the stipulation that "voting must be compulsory", but does not explain how anyone would enforce this in a country of a billion-plus people. Moreover, cannot the presidential system also be perverted by past masters in this art?

However, the more one disagrees with Shourie on any issue the more enjoyable become his relentless and massively marshalled arguments in support of his contention. And, as it happens, he is a prolific writer. The list of his previous publications adds up to 20, perhaps higher than the total number of books many of his colleagues in both his professions—journalism and politics—might have read. ■